

24NNCV06896 24NNCV06896

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-25

Motion: MOTION FOR LEAVE TO AMEND COMPLAINT

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Case Number: 24NNCV06896 Hearing Date: August 25, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ZACHARY JAMES DURANTO,

Plaintiff(s),

vs.

LORIN
SANDOR JENIS, et al.,

Defendant(s).

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CASE NO.: 24NNCV06896

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO AMEND COMPLAINT

Dept.

3

8:30

a.m.

August

25, 2026

Plaintiff

Zachary James Duranto ("Plaintiff") moves for leave to file a First Amended Complaint ("FAC"). The proposed FAC "restates Plaintiff's existing negligence claims", "pleads the factual basis for [defendant DoorDash, Inc. ("DoorDash")]s vicarious liability under the common-law right-to-control test", and "adds direct-liability claims against DoorDash for ... the design and operation of the DoorDash software application that its driver was required to run while driving, the training it gave him, and the appearance of agency." (Motion, p. 3.) Plaintiff argues that the motion is timely because the facts establishing these claims were established at the deposition of the driver, defendant Lorin Sandor Jenis ("Jenis"). The deposition took place on July 13, 2026.

The court

may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd.

(a)(1).) “Public policy dictates that leave to amend be liberally granted.” (Centex Homes v. St. Paul Fire & Marine Ins. Co. (2015) 237 Cal.App.4th 23, 32.) However, “[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial . . . this policy should be applied only ‘where no prejudice is shown to the adverse party.’” (Magpali v. Farmers Group, Inc. (1996) 47 Cal.App.4th 471, 487.)

Plaintiff moves

for leave to file the proposed FAC on the grounds that it recently discovered facts that were exclusively in DoorDash’s exclusive possession when its driver testified on July 13, 2026. Plaintiff argues there is no prejudice because no new party is added, the new claims arise from the same accident and documents, and DoorDash is already in possession of the witnesses and documents forming the basis of Plaintiff’s new claims.

In

opposition, defendants DoorDash and Lorin Sandor Jenis (“Jenis”) (collectively, “Defendants”) argue that the proposed changes are unreasonable and prejudicial because these theories could have been included in his initial complaint filed in 2024. Defendants argue that DoorDash would be prejudiced by this inexcusable delay because the amended complaint would moot DoorDash’s pending summary judgment motion. (Opp., p. 4.) Defendants also argue that the FAC’s proposed additions are unnecessary because Plaintiff can also argue that DoorDash exercised sufficient control over Jenis to establish an employee or agent relationship while opposing DoorDash’s summary judgment motion. Defendants further contend that Plaintiff’s proposed amendments run counter to the law that drivers bear the responsibility to obey traffic laws and not divert their attention from the road. (Opp., p. 5.)

Here, the

Court has continued the trial date to April 26, 2027, and there is ample time for the parties to conduct any additional discovery (if any is required) and file any dispositive motions if needed. Notably, Defendants do not identify any additional discovery that they will need to undertake in order to defend against Plaintiff’s newly-raised theories of liability.

Accordingly,

Plaintiff's motion is GRANTED and Plaintiff is ordered to file the proposed FAC within 5 court days.

Moving party to give notice.

Dated

this 25th

day of August

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.